

Taverham Primary School Visit Report

Audit Date: 07/01/19

Report: Year 2 visit 2

DPE: Stuart Lee

School member: Paul Henman

1. Visit details

Key GDPR documentation and DPE best practice areas were discussed/demonstrated with the school. Discussion took place and feedback was given in relation to the summer 2019 NCC audit findings (refer to section 7 for more details).

The school has CCTV and are currently getting the combined GDPR Policy and CCTV Policy signed off by governors (draft shown to SL during visit). It was suggested Paul cross reference the CCTV section of the school GDPR Policy with DPE CCTV documentation and amend wording for the CCTV section, before getting signed off by governors. Paul was signposted to the CCTV best practice area on the DPE website. The school GDPR/CCTV policy will be reviewed annually. Paul to have additional CCTV paperwork separate to the main GDPR Policy for if someone asks for additional information i.e. location of cameras etc. The school have the option of sending to DPE (dpo@dataprotection.education) for review once completed if needed.

The ICO named DPO notification email was completed during the visit.

2. Audit walk findings

Discussed previous report actions and it was agreed no audit walk would be completed during the visit. Please refer to previous reports. Details of main points discussed in the absence of a school walk:

Lists and displays:

- The school has now moved to forename only for lists and displays

Headteachers office:

- **Advisory:** Discussed sensitive data that could be worked on in the head teacher's office and whether key code entry for the office would be beneficial.;

Headteacher laptop:

- The headteacher's laptop was not encrypted. **Action point:** turn on bitlocker for the headteacher and any staff where bitlocker is not activated: <https://docs.microsoft.com/en-us/windows/security/information-protection/bitlocker/bitlocker-overview>

Student iPads:

- No keycode activated for iPads as these need to be accessible to students. Photos can therefore inadvertently be taken. **Note:** Paul suggested disabling the camera app for student iPads to avoid students inadvertently taking photos.

3. Compliance actions that should now be completed

Initial documents:

- Privacy Notice
- GDPR Policy
- Data Breach Procedure.
- SAR procedure
- Photo and Video consent

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. If using GDPRiS this should also be kept updated. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

3.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- IRMS toolkit: https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf
- DfE toolkit
https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf (Annex 5,1)

3.2. Staff training

GDPR training should be completed and documented. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

Note: SL offered to complete an afterschool awareness session for a selected group, or all staff. Paul to consider this but may complete internally once Paul has completed the online training.

3.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

3.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

4. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

5. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

6. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

6.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

7. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>